



DECISION

Complaint No. : POS/532/2023/HYD/53

Name and address of the complainant : Mst. Zarina R/o village Arif Khatian P.O Arif Khatian, Taluka & District Matiari.

Name of the Agency Complained against : Assistant Commissioner, Taluka Jhando Mari, District Tando Allahyar

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director, Regional Office, Hyderabad.

Vetted by : Muhammad Naseer Jamali, Advisor (N)

Subject : ALLEGED INORDINATE DELAY IN CHANGE OF FOTIKHATA OF LAND LEFT BY DECEASED FATHER OF THE COMPLAINANT.

COMPLAINT

Mst. Zarina and others filed a complaint dated 02.01.2023 wherein they alleged inordinate delay in the mutation of foti-khata of land left by her deceased father, named Muhammad Ismail amongst the legal heirs. Aggrieved by that, she solicited intervention of this Institution.

PROCEEDINGS

2 The complaint was admitted for investigation under Section 10(3) of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date) subject to submission of an affidavit on Form-A and by condonation of the delay.

3 This office issued a notice vide letter dated 28.04.2023 to the Mukhtarkar, Taluka Jhando Mari for report, who in response informed vide letter dated 08.05.2023 that the deceased, Muhammad Ismail was owner of agricultural land, bearing S. Nos: 501/3, 511/1, 511/2 and 511/3 (16-29 acres) situated at deh Daro Suleh, Taluka Jhando Mari. The fotikhata of said land was mutated vide entry No: 137 dated 08.01.2021 in favour of following legal heirs.

Sr. No:	Name	Share
01	Arab S/o Ismail Khaskheli	0-14 58 paisa
02	Sono S/o Ismail Khaskheli	0-14 58 paisa
03	Qurban Ali S/o Ismail Khaskheli	0-14 58 paisa
04	Mst. Sahil D/o Ismail Khaskheli	0-7 30 paisa
05	Muhammad Ramzan S/o Ismail Khaskheli	0-14 58 paisa
06	Mst. Aami D/o Ismail Khaskheli	0-7 30 paisa
07	Mst. Noor Khatoon D/o Ismail Khaskheli	0-7 30 paisa
08	Mst. Lal Khatoon D/o Ismail Khaskheli	0-7 30 paisa
09	Bakhtawar Wd/o Ismail Khaskheli	0-12 ½ paisa
	Total	01-00 (full rupee)

4. The report of the agency was sent to the complainant for rejoinder vide letter dated 16.07.2023, who in response submitted her rejoinder vide letter dated 29.08.2023 wherein she informed that Mst. Lal Khatoon is shown as a legal heir but she is not their sister. She submitted an affidavit that she has been deprived from her share in the land left by her deceased father but she could not produce any documentary evidence in support of her claim. She was advised to file an appeal before Deputy Commissioner / Collector of the district under Land Revenue Act if she is aggrieved.

DECISION

5. In view of the above and exercise of powers vested in me under section 11 of Establishment Office of the Ombudsman for the Province of Sindh Act, 1991 (amended up to date) the complainant is advised to file an appeal before the Collector of the district under land Revenue Act with regard to her grievance.

Given under my hand and seal of the office

Sd /-

(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman, Sindh

Karachi, dated 06th May, 2026

